

25NNCV06984 25NNCV06984

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-09-02

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Case Number: 25NNCV06984 Hearing Date: September 2, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

ROSITA SY,

Plaintiff,

vs.

LOS ANGELES METROPOLITAN TRANSIT

AUTHORITY; DOES 1 TO 50,

Defendants.

Case

No.:

25NNCV06984

Hearing

Date:

September

2, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO COMPEL PLAINTIFF TO RESPOND TO DEMAND FOR
INSPECTION OF DOCUMENTS WITHOUT OBJECTION

MOVING PARTY: Defendant Los Angeles County
Metropolitan Transportation Authority

RESPONDING PARTY: None.

The Court
considered the moving papers filed in connection with the instant motion.

BACKGROUND

On October 2, 2025,
Plaintiff Rosita Sy ("Plaintiff") brought this action against Defendant Los
Angeles County Metropolitan Transportation Authority erroneously sued as Los
Angeles Metropolitan Transit Authority ("Defendant"), alleging a cause of
action for negligence. The cause of action arises out of injuries Plaintiff
allegedly suffered from a fall while a passenger on Defendant's vehicle.

On June 4, 2026,
Defendant filed the instant motion to compel Plaintiff's responses to
Defendant's Demand for Inspection and Production of Documents ("RFPs").

No opposition was filed.

LEGAL STANDARD

"[A] party may propound a
supplemental demand to inspect, copy, test, or sample any later acquired or
discovered documents, tangible things, land or other property, or
electronically stored information in the possession, custody, or control of the
party on whom the demand is made." (Code Civ. Proc., § 2031.050,
subd. (a).) "Within 30 days after service of a demand for inspection, copying,

testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand.” (Code Civ. Proc., § 2031.260, subd. (a).) “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it... The party making the demand may move for an order compelling response to the demand.” (Code Civ. Proc., § 2031.300, subd. (b).) “The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2031.300, subd. (a).)

DISCUSSION

Defendant moves to compel
Plaintiff’s responses to the RFPs.

Defendant served Plaintiff with the
RFPs on March 24, 2026. (Wainfeld Decl., ¶ 1, Exh. A.) Therefore, at the latest, responses were due on or before April 27, 2026, accounting for two additional days for electronic service. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) On May 5, 2026 and May 14, 2026, Defendant’s counsel emailed Plaintiff’s counsel requesting responses, but Defendant never received responses to those emails or the RFPs. (Wainfeld Decl., ¶¶ 2-3, Exh B.) Plaintiff has not filed an opposition to the instant motion.

The Court grants Defendant’s motion
to compel Plaintiff’s responses.

SANCTIONS

Defendant requests that the Court
award monetary sanctions in favor of Defendant against Plaintiff in the amount of \$350.00 for each motion.

When a request for monetary sanctions is concurrently filed with a motion to compel responses, “[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).) Additionally, “If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction

unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanction unjust.” (Ibid.)

Plaintiff failed to file an opposition and has not established substantial justification or the existence of circumstances that make the imposition of sanctions unjust. Sanctions are mandatory.

Defendant’s counsel cites his hourly rate at \$350.00 and contends that he spent one hour preparing each of the instant motions. (Wainfeld Decl., ¶ 4.) The Court finds Defendant’s request and the time expended reasonable.

The Court awards \$350.00 in monetary sanctions for the instant motion.

CONCLUSION

Based on the foregoing, the Court GRANTS Defendant Los Angeles County Metropolitan Transportation Authority’s motion to compel Plaintiff Rosita Sy’s responses to Defendant’s Demand for Inspection and Production of Documents.

The Court awards sanctions in the amount of \$350.00 against Plaintiff and her counsel of record, jointly and severally, payable to counsel for Plaintiff within twenty (20) days of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 2, 2026

Sarah
J. Heidel

Judge
of the Superior Court